

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                     |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|---------------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Jasmine Miranda                  | Team:<br>Team # 1                                                   | CCRB Case #:<br>201115981 | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 10/17/2011 7:42 PM    | Location of Incident:<br>3539 Broadway; 30th Precinct Stationhouse. | 18 Mo. SOL<br>4/17/2013   | Precinct:<br>30                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Tue, 12/13/2011 11:58 AM | CV Reported At:<br>CCRB                                             | How CV Reported:<br>Mail  | Date/Time Received at CCRB<br>Tue, 12/13/2011 11:58 AM                                                                                                                                                                |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. POM Avery Jennings | 28198  | 944092 | 030 PCT |
| 2. POM Sean Carroll   | 23316  | 941508 | 030 PCT |
| 3. POM Robert Gach    | 02625  | 943262 | 030 PCT |
| 4. POM Alvin Pizarro  | 13870  | 943687 | 030 PCT |
| 5. Officers           |        |        | 030 PCT |

| Witness Officer(s) | Shield No | Tax No | Cmd Name |
|--------------------|-----------|--------|----------|
| 1. SGT Andy Wong   | 04325     | 927821 | 030 PCT  |

| Officer(s)             | Allegation                                                                                         | Investigator Recommendation |
|------------------------|----------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Avery Jennings | Force: At 3539 Broadway in Manhattan, PO Avery Jennings used physical force against § 87(2)(b)     | A . Unfounded               |
| B . POM Robert Gach    | Force: At 3539 Broadway in Manhattan, Officer Robert Gach used physical force against § 87(2)(b)   | B . Unfounded               |
| C . POM Sean Carroll   | Force: At 3539 Broadway in Manhattan, Officer Sean Carroll used physical force against § 87(2)(b)  | C . Unfounded               |
| D . POM Alvin Pizarro  | Force: At 3539 Broadway in Manhattan, Officer Alvin Pizarro used physical force against § 87(2)(b) | D . Unfounded               |
| E . Officers           | Force: At 3539 Broadway in Manhattan, officers used physical force against § 87(2)(b)              | E . Officer(s) Unidentified |
| F . POM Robert Gach    | Force: At 3539 Broadway in Manhattan, PO Robert Gach used pepper spray against § 87(2)(b)          | F . Exonerated              |
| G . POM Robert Gach    | Force: At 3539 Broadway in Manhattan, PO Robert Gach used physical force against § 87(2)(b)        | G . Unsubstantiated         |
| H . Officers           | Discourtesy: At the 30th Precinct stationhouse, officers spoke discourteously to § 87(2)(b)        | H . Officer(s) Unidentified |

## Case Summary

On December 13, 2011, § 87(2)(b) filed the following complaint via mail to the Civilian Complaint Review Board (enc. C3-C6).

On October 17, 2011, at approximately 7:42 PM, § 87(2)(b) was within a Rite-Aid, located at 3539 Broadway in Manhattan, New York. § 87(2)(b) interacted with PO Avery Jennings, PO Robert Gach, PO Sean Carroll and PO Alvin Pizarro of the 30<sup>th</sup> Precinct. The following allegations resulted from their interactions:

**Allegation A—Force: At 3539 Broadway in Manhattan, PO Avery Jennings used physical force against § 87(2)(b)**

**Allegation B—Force: At 3539 Broadway in Manhattan, PO Robert Gach used physical force against § 87(2)(b)**

**Allegation C—Force: At 3539 Broadway in Manhattan, PO Sean Carroll used physical force against § 87(2)(b)**

**Allegation D—Force: At 3539 Broadway in Manhattan, PO Alvin Pizarro used physical force against § 87(2)(b)**

§ 87(2)(g)

It is recommended that Allegation A-D be unfounded.

**Allegation E—Force: At 3539 Broadway in Manhattan, officers used physical force against § 87(2)(b)**

§ 87(2)(g)

It is recommended Allegation E be closed as officer(s) unidentified.

**Allegation F—Force: At 3539 Broadway in Manhattan, PO Robert Gach used pepper spray against § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegation F be exonerated.

**Allegation G—Force: At 3539 Broadway in Manhattan, PO Robert Gach used physical force against § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegation G be unsubstantiated.

**Allegation H—Force: At the 30<sup>th</sup> Precinct stationhouse, officers spoke discourteously to § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegation H be closed as officers unidentified.

§ 87(2)(g)

## Results of Investigation

### Civilian Statements

**Complainant/Victim:** § 87(2)(b)

- § 87(2)(b) was born on § 87(2)(b) and is a § 87(2)(b). black male with black hair and brown eyes. At the time of the interview, § 87(2)(b) was incarcerated in Rikers Island.

### **Statements to Medical Personnel**

After being brought to § 87(2)(b) in police custody on § 87(2)(b), § 87(2)(b) complained of lower back, groin and shoulder pain. § 87(2)(b) later denied that anything was wrong with him and refused medical treatment (enc. E6-E19).

### **CCRB Statement**

§ 87(2)(b) was interviewed at the § 87(2)(b) on Rikers Island on December 22, 2011 (enc. C7-C10). On October 17, 2011, at approximately 7:42 pm, § 87(2)(b) was inside a Rite Aid located at 3539 Broadway in Manhattan. Inside the store, he was apprehended by private store security for shoplifting. The store security guard, identified via investigation as § 87(2)(b) who § 87(2)(b) estimated weighed over 200 pounds, sat on § 87(2)(b)'s back as § 87(2)(b) lay on the floor and they waited for the police to arrive. § 87(2)(b) said that the force used by the guard, and the subsequent pressure of him sitting on his back during the wait for the police, caused rib and facial pain. The source of the facial pain was due to his head being pushed toward the ground by the guard, which aggravated pre-existing dental work.

When the police arrived, § 87(2)(b) was laying on the floor with § 87(2)(b) sitting on top of him. An officer turned § 87(2)(b) over on the floor and handcuffed him. § 87(2)(b) thought an officer, who he identified by name as PO Avery Jennings from the 30<sup>th</sup> Precinct placed the handcuffs on his wrists. § 87(2)(b) learned PO Jennings's name from court paperwork after the incident and knew him as his arresting officer, but he was unable to physically describe PO Jennings. After being handcuffed by PO Jennings, § 87(2)(b) remained on the floor and waited for the officers to conduct their investigation by talking to the store employees, including a manager and § 87(2)(b).

A few minutes later, § 87(2)(b) asked PO Jennings to call an ambulance for him. Before the ambulance arrived, § 87(2)(b) "passed out for a little while." He was still lying on the floor at the time. § 87(2)(b) did not know what caused him to pass out and has no prior history of losing consciousness. § 87(2)(b) sitting on his back caused § 87(2)(b) to have difficulty breathing and believed this might have contributed to his loss of consciousness. Later in the interview, § 87(2)(b) amended this and said that he was standing when he initially asked for an ambulance, and said that an unidentified sergeant was present for the request, but when asked if he knew that a sergeant was present based on information from the report or from his independent recollection, he said that he remembered seeing the sergeant. § 87(2)(b) could not recall anything specific that the sergeant did and was unable to describe the sergeant aside from knowing he was a sergeant due to his chevrons. § 87(2)(b) heard an officer who he could not remember call for an ambulance to the Rite Aid. He referred to an unidentified report several times and asked the investigator to see police reports.

When § 87(2)(b) woke, a group of officers, including PO Jennings, were dragging him across the floor and out of the store. The officers were all male and dressed in uniform, and he thought there were three additional officers aside from PO Jennings. However, he could not describe any of them aside from three of these unidentified officers being white males. None of the three white male officers were the same as the sergeant referenced above. The remaining officers were identified by the investigation as Officer Robert Gach, Officer Sean Carroll, and Officer Alvin Pizarro. Two of the officers held § 87(2)(b)'s handcuffed arms by either side, and two more held § 87(2)(b)'s legs up by his pant cuffs. At this point, § 87(2)(b) was on his stomach. § 87(2)(b) said that the officers grew tired of waiting for the ambulance and had decided to take him back to the 30<sup>th</sup> Precinct stationhouse because they thought he was feigning

unconsciousness. When asked how he had surmised this, as he had been unconscious up until being dragged, § 87(2)(b) stated that he came to his conclusion after arriving at the stationhouse and hearing comments from the officers.

PO Jennings and the other three officers dragged § 87(2)(b) across the sidewalk to a marked police car parked outside the Rite Aid. One of the officers opened the rear passenger side door. The officers threw § 87(2)(b) into the car by holding him up off the ground by his arms and legs and then throwing him head first into the backseat of the marked car. § 87(2)(b) landed in the back seat, face-down, lying across the seats, with his feet dangling out the other side. He immediately tried to roll over so that he was facing upward. At this point, one of the unidentified white officers stood with his body outside the car on the sidewalk, extended his arm into the vehicle, and sprayed three bursts of pepper spray in § 87(2)(b)'s face.

After being pepper-sprayed, § 87(2)(b) reacted by coughing, gagging, wheezing, and crying. The same officer who had pepper-sprayed § 87(2)(b) then punched him in the groin. § 87(2)(b) remained in the vehicle and was still coughing and crying in reaction to the pepper spray and being punched for about five minutes before two unidentified white uniformed males entered the marked car and transported § 87(2)(b) to the 30<sup>th</sup> Precinct stationhouse. The windows of the marked car were closed for the entire time, but the officers did not appear to have been affected by the pepper spray. At the stationhouse, § 87(2)(b) waited for about ten minutes until an ambulance arrived, and was then transported to § 87(2)(b). While inside the stationhouse, when § 87(2)(b) was choking and coughing from the pepper spray, an unspecified amount of officers who he could not describe or identify told him that he was a “fucking baby,” that his complaints were “bullshit,” that he didn’t need any medical treatment and that he was “faking.” He could not remember or describe any of the officers who participated in this conversation and did not know if they were the same as those who had transported him. He remembered that the same officer who had pepper sprayed him was present at the time, as was PO Jennings. He also thought a uniformed Asian male, who was the desk sergeant was present, but was not sure if he had made any of the discourteous remarks. § 87(2)(b) later added that this conversation included him telling the officers that it wasn’t necessary to have pepper sprayed him. At that point, the desk sergeant advised PO Jennings to prepare an AIDED report (he referred to this document by name) and to charge § 87(2)(b) with resisting arrest to “cover [his] ass.”

§ 87(2)(b) learned the names and shield numbers of PO Sean Carroll, PO Robert Gach, and PO Alvin Pizarro from paperwork related to the criminal complaint against him, but he did not know the physical appearances of any of the named officers and did not know what actions, if any, were performed by each of the officers that he named in his initial written complaint. He said that the charges against him included claims by the officers that he had kicked, hit, and bit them, which is why the aforementioned officers were named. § 87(2)(b) then displayed his teeth, all of which were in braces, which he described as “splints” and said they had been applied to treat an old dental injury in the weeks prior to the incident.

§ 87(2)(b) stated that his braces were proof that he had not bitten or attempted to bite an officer because his teeth were broken and not strong enough to bite down on anyone. § 87(2)(b) also said that video from the Rite Aid store was being used in the criminal case against him and might be available for use by the investigation as proof that he did not act against the officers. § 87(2)(b) waited almost two months to file his complaint because he had started steps to file a civil suit against the officers from Rikers Island and thought that he should also complain administratively, but had not thought to file a CCRB complaint until a few weeks later. § 87(2)(b) has filed CCRB complaints in the past and also filed his notice of claim without an attorney a few weeks before making the CCRB complaint.

**Witness:** § 87(2)(b)

- § 87(2)(b) was born on § 87(2)(b) and is a § 87(2)(b), black Hispanic male with black hair and brown eyes. § 87(2)(b)

**CCRB Statement**

§ 87(2)(b) was interviewed at the CCRB on May 23, 2012 (enc. C14-C20). On October 17, 2011, at approximately 7:30 PM, § 87(2)(b) was in the Rite-Aid general store office, located at 3539 Broadway in Manhattan, watching surveillance footage. He noticed two males entering the store. The first male—who was described by § 87(2)(b) as a dark skinned black male, about 5’11” tall, in his thirties, with a light beard, wearing a black coat and olive drab hat and dark blue jeans and black boots—went straight into the lotion aisle. About three to four minutes later, another unknown man, described as a light skinned black male, about 5’4” tall, with a black hat, glasses and in his forties, entered the same aisle as § 87(2)(b) walked up to him, dropped a bag on the aisle floor and stood in front of § 87(2)(b). § 87(2)(b) noticed that the other male was blocking § 87(2)(b)’s body while he was stuffing bottles of Nivea lotion down his pants. § 87(2)(b) exited the general store office and stood in front of the store entrance. § 87(2)(b) then knelt down by the first cash register to watch § 87(2)(b) steal the lotion. When § 87(2)(b) was done, he began to walk out of the Rite Aid. The unknown male stayed back in the aisle where he and § 87(2)(b) were standing. It took less than one minute for § 87(2)(b) to attempt to exit the store from the aisle. § 87(2)(b) upon seeing § 87(2)(b) stuck out both arms in front of him and pushed § 87(2)(b). § 87(2)(b) performed the same action, and grabbed § 87(2)(b)’s hands. Both men fell. As they fell, § 87(2)(b) clenched and kept hold of § 87(2)(b)’s hands.

§ 87(2)(b) maintained control of § 87(2)(b) and told him to calm down. § 87(2)(b) held down § 87(2)(b)’s hands to prevent him from getting up. His store manager, § 87(2)(b), assisted him with holding § 87(2)(b) down. § 87(2)(b) estimates that he was in this position with § 87(2)(b) for about twelve minutes. In the meantime, 911 was called, but § 87(2)(b) did not know which of the store employees called 911. After about eleven to thirteen minutes, PO1 and PO2 entered the Rite Aid. About a minute or two after the arrival of PO1 and PO2, PO3 and PO4 arrived. They did not assist with the handcuffing and stood around the entrance of the Rite-Aid. PO3 and PO4 appeared to be speaking with PO1 and PO2, but § 87(2)(b) did not pay attention and did not know what they were saying. § 87(2)(b) was unable to provide adequate descriptions of the officers involved aside from them being light-skinned Hispanic uniformed males. As soon as PO1 and PO2 appeared, § 87(2)(b) let go of § 87(2)(b) and got up from the floor. PO1 and PO2 immediately picked up § 87(2)(b) by holding him up underneath his arms. § 87(2)(b) appeared to be acting normally at this time. PO1 and PO2 asked § 87(2)(b) what the incident was about. § 87(2)(b) told the officers what happened and showed them the video of § 87(2)(b) stuffing the lotion bottles down his pants. At this point, the officers took custody of § 87(2)(b). § 87(2)(b) did not see when § 87(2)(b) was handcuffed, as he was standing by the counter with his back turned to PO1, PO2 and § 87(2)(b) filling out paperwork. About six minutes after § 87(2)(b) was picked up by PO1 and PO2, § 87(2)(b) was on the floor, as if he had fainted.

§ 87(2)(b) did not see how § 87(2)(b) came to be on the ground, as he was still completing his paperwork. When § 87(2)(b) gave the officers the paperwork, he saw § 87(2)(b) on the floor, as if he had fainted, or was feigning sleep. Prior to this, he was standing. PO1 and PO2 shook § 87(2)(b)’s arm to check on him. PO1 and PO2 were checking on § 87(2)(b) to see if he, in fact, did faint. § 87(2)(b) denied that the police officers present made

any physical contact with § 87(2)(b) during his supposed fainting episode and denied that an ambulance was present at the scene of the incident. At this time, § 87(2)(b) was still by the first cash register doing his paperwork. He estimated that § 87(2)(b) was on the floor for an additional fifteen minutes. § 87(2)(b) believed that PO1, PO2, PO3 and PO4 waited for that amount of time and then took § 87(2)(b) out of the Rite-Aid. One of the officers took both of § 87(2)(b)'s arms and another officer took both of his legs and carried him out of the Rite-Aid. § 87(2)(b) was unsure of which officer took hold of which part of § 87(2)(b)'s body to carry him out. The remaining officers held open the door in order for the first two officers to carry § 87(2)(b) out of the entrance. § 87(2)(b) still appeared to be passed out. § 87(2)(b) denied that any of the police officers dragged any part of § 87(2)(b)'s body on the floor. § 87(2)(b) did not see anything that occurred outside of the Rite Aid. § 87(2)(b) also denied smelling or feeling the effects of any pepper spray being used during the incident. When § 87(2)(b) completed his paperwork, he gave it to the police officers and they then left the Rite-Aid.

**Witness:** § 87(2)(b)

- *Demographic information is not available for* § 87(2)(b) § 87(2)(b)

**Telephone Statement to the CCRB**

This phone statement was taken from § 87(2)(b) on June 4, 2012 (enc. C11). § 87(2)(g) was unable to recall much detail about this incident as there were many similar occurrences after § 87(2)(b)'s incident during her tenure at Rite Aid and she could not be sure if the incident described below was precisely the one she had been asked about.

§ 87(2)(b) was at the back of the store and was walking toward the front as she was helping another person. She saw the argument with a security guard and a shoplifter over merchandise in the front of the store. As the situation began to get violent, § 87(2)(b) went toward the register to call 911 from her cell phone. As the shoplifter was about to walk out of the Rite-Aid, the security guard attempted to stop him and told the shoplifter to give him the items. The shoplifter said "No, I don't have anything." The security personnel told the shoplifter, "No, I saw you with some items. Give me the items." § 87(2)(b) noticed the shoplifter's hand was bleeding and believed he had a knife on his person. § 87(2)(b) moved to the register during the time of the incident. She did not remember if the shoplifter came with anyone else. § 87(2)(b) then called 911. § 87(2)(b) remembered that there was another female 911 caller who worked at another Rite Aid named § 87(2)(b). On the day of the incident, § 87(2)(b) was in the Rite Aid with the store manager. § 87(2)(b) remembered seeing the store manager on the floor with the security guard, holding down the shoplifter. She called 911 and thought that § 87(2)(b) called after she did. It took five to ten minutes for the police to arrive. § 87(2)(b) did not know if § 87(2)(b) still worked at Rite-Aid, as she herself was no longer employed by Rite-Aid.

About four to five police officers arrived at the same time. § 87(2)(b) recalled one female Hispanic officer, two white male officers and two male Hispanic officers, all in uniform. The officers asked the security guard what happened. The shoplifter sat down on the floor as this was happening. The officers then asked the shoplifter what happened. An officer found more bottles of lotion in his pants leg. § 87(2)(b) told one of the officers that the shoplifter may have a knife, as he did not want to take his hand out of his coat pocket. After searching, an officer replied that the shoplifter did not have a knife; he cut himself with his zipper. § 87(2)(b) could not remember if any of the officers cursed at the shoplifter. Afterward, the police officers took the shoplifter with them. § 87(2)(b) could not remember if the shoplifter threw himself on the floor; she recalls another incident when a shoplifter did this, the same amount officers responded and stated that

the shoplifter was picked up off of the floor by police officers, but cannot remember if this happened specifically with § 87(2)(b)

§ 87(2)(b) could not remember if the shoplifter was ever handcuffed or if he was just taken out of the Rite-Aid. In the similar incident when a shoplifter was lifted off of the store ground by police officers, § 87(2)(b) saw about two or three officers initially, then another three officers entered the store and took the shoplifter out of the store. One officer was holding the shoplifter's upper body. The other officers were holding the shoplifter's side. Before picking the shoplifter up from the ground, the officer told him to get up from the floor. The shoplifter refused and he was picked up from the ground. In that case, the shoplifter was never dragged on the ground; he was lifted up completely from the floor. In that case, § 87(2)(b) was taking pictures of lotion bottles and producing a receipt for store records and for the officers' records. She remembers the officers being within the store for about fifteen minutes. The officers then picked the shoplifter up from the floor and carried him outside. Because § 87(2)(b) denied being outside the Rite-Aid, she did not see what happened outside.

### **Attempts to Contact Civilians**

A former Rite-Aid employee by the name of § 87(2)(b) was contacted on May 17, 2012, October 10, 2012 and October 17, 2012 to provide a witness statement regarding the incident. During each contact attempt, an automated message was played, stating that the number dialed was incorrect. On October 17, 2012, a White Pages reverse phone number search and a Lexis Nexis phone number search were conducted. Neither search revealed any information (enc. G8-G12).

### **NYPD Statements:**

#### **Subject Officer: PO ROBERT GACH**

- *PO Robert Gach is a § 87(2)(b) year old, § 87(2)(b), white male with brown hair and brown eyes.*
- *At the time of the incident, PO Gach was assigned to Sector Patrol in a marked car with partner PO Avery Jennings. PO Gach worked from 3 PM until 11:35 PM and was uniform.*

### **Memo Book**

At 7:12 PM, on the incident date, PO Gach responded to security holding a shoplifting suspect at Rite Aid on the corner of West 145<sup>th</sup> Street and Broadway. The situation was described as being not under control. At 7:30 PM, PO Jennings placed § 87(2)(b) under arrest. § 87(2)(b) fought with security, broke items in the store and resisted arrest. After § 87(2)(b) was handcuffed, he fell to the floor and refused to walk, where he was carried to a marked patrol car. During this § 87(2)(b) refused to comply and began to kick and scream at police. PO Gach was bit, but skin was not broken. After this, he sprayed one burst of pepper-spray directly in § 87(2)(b)'s face. § 87(2)(b) continued to kick and scream at PO Pizzaro and PO Carroll. EMS was requested at the 30<sup>th</sup> Precinct stationhouse. § 87(2)(b) complained of leg, back and teeth pain from prior dental work. At 8:20 PM, EMS tended to § 87(2)(b). PO Gach also accompanied § 87(2)(b) to § 87(2)(b) where he was examined and refused all medical treatment and was discharged after § 87(2)(b) stated that nothing was wrong. At 11:20 PM, § 87(2)(b) was transported back to the stationhouse (enc. D1-D2).

### **Medical Treatment of Prisoner Form**

On October 17, 2011, PO Robert Gach wrote the following: "At the time and place of occurrence, the prisoner had been complaining of pain from former leg injury and dental work. Prisoner was maced by police after biting a police officer. EMS 4064 treated prisoner at the 30<sup>th</sup> Precinct

stationhouse. Prisoner stated to EMS that he also has prior back pain. § 87(2)(b) ACR#. § 87(2)(b)  
§ 87(2)(a) PHL § 18(6)  
(enc. D3).

### **CCRB Statement**

PO Robert Gach was interviewed at the CCRB on June 6, 2012 (enc. D4-D6). On October 17, 2011, PO Gach and PO Jennings arrived at Rite-Aid, located at 3537 Broadway in Manhattan. It is not noted in PO Gach's memo book when they actually arrive, but they had to have arrived in between 7:12 PM, when the 911 call was announced, and before 7:30 PM, which was when § 87(2)(b) was placed under arrest. Upon their arrival, PO Gach and PO Jennings observed § 87(2)(b) on the floor with the security officer about ten feet from the entrance. PO Gach and PO Jennings picked § 87(2)(b) up almost immediately after they arrived. PO Jennings searched § 87(2)(b)'s person. § 87(2)(b) still had the stolen items underneath his coat, which PO Jennings recovered. After recovering the items, § 87(2)(b) was handcuffed. It was not asked which officer handcuffed § 87(2)(b). PO Gach and PO Jennings spoke to § 87(2)(b) and the store manager who showed the items that § 87(2)(b) shoplifted. This exchange took about ten to fifteen minutes, as PO Gach and PO Jennings were filling out affidavits (which included observing parties, how long § 87(2)(b) was observed and what items were found on § 87(2)(b) amongst other store paperwork with the security officer and the store manager. PO Gach was directly to the left of § 87(2)(b). After § 87(2)(b) was already handcuffed, PO Carroll and PO Pizarro entered the Rite Aid and stood in front of § 87(2)(b). While speaking with the security officer and store manager, PO Gach and PO Jennings learned that § 87(2)(b) had broken items in the store and was fighting with § 87(2)(b). PO Gach did not observe this. During this time, § 87(2)(b) stood next to PO Gach as he was speaking to the store manager and did not say anything. PO Gach and PO Jennings were done speaking with § 87(2)(b) and the store manager, announced that their marked car was outside and were leaving. § 87(2)(b) then threw himself on the ground and landed on his backside.

PO Carroll or PO Pizarro asked § 87(2)(b) if he was going to walk. § 87(2)(b) gave no response. PO Jennings, PO Carroll and PO Pizarro picked § 87(2)(b) up off of the ground and carried him to PO Gach's and PO Jennings' police car. PO Gach did not remember how each officer was configured when carrying § 87(2)(b) out of the Rite Aid. PO Gach held open the door of the Rite Aid entrance to assist the other officers with carrying § 87(2)(b) out of the establishment and toward their police car, which was about ten feet away from the Rite-Aid entrance. § 87(2)(b) started screaming and yelling. PO Gach did not remember anything in particular, or relevant, that was yelled by § 87(2)(b). PO Gach had opened the rear passenger door with his right hand and had his left hand on § 87(2)(b)'s chest, as § 87(2)(b) was sitting on the seat but continued to bring his upper body forward. § 87(2)(b) continued screaming as PO Carroll and PO Pizarro placed § 87(2)(b) within the back seat of the police car. PO Carroll and PO Pizarro were trying to control § 87(2)(b)'s feet by placing them down and trying to get his feet into the marked car. PO Gach denied seeing § 87(2)(b) being thrown into the police car. PO Gach also denied that he or any of the other officers replied to § 87(2)(b)'s screaming. While § 87(2)(b) was being placed into the police car, he began kicking PO Carroll and PO Pizarro, and continued screaming and yelling, but PO Gach could not discern anything that was being yelled by § 87(2)(b). PO Jennings walked around to the rear driver's side of the police car to slide § 87(2)(b) inside of the car. § 87(2)(b) then latched his mouth and teeth on and around PO Gach's left pinky knuckle for about one second. PO Gach, after feeling § 87(2)(b)'s teeth on him, immediately took his pepper spray with his right hand and sprayed § 87(2)(b) in the nose with one small burst. § 87(2)(b) immediately let go of PO Gach's hand and PO Gach pulled himself away from § 87(2)(b). PO Gach also denied that § 87(2)(b) ever complained about



trouble breathing after being sprayed. PO Gach recalled another officer choking after the mace was used, but he did not know which officer was doing this. PO Gach believed that using OC spray was less lethal than using an asp, punching § 87(2)(b) in the face or using a firearm and was appropriate for the situation at hand.

PO Gach did not use any other type of physical force to get § 87(2)(b) off of his hand, nor did he see any other officers use any additional force to remove § 87(2)(b)'s bite from PO Gach, including punching § 87(2)(b) in the groin. After § 87(2)(b) was sprayed, he fell back into the back seat of the police car, with his back making impact with the backseat and his legs from his knees on still dangling out from the vehicle. § 87(2)(b) continued kicking and making contact with PO Carroll and PO Pizarro, who then grabbed § 87(2)(b)'s legs to prevent him from kicking again. § 87(2)(b) did not make any other contact with PO Gach during that time. § 87(2)(b) continued to kick his legs until the police car door was shut, which took about one to two minutes. It was not asked which officer closed the door, nor how long it took for the officers to place § 87(2)(b) into the marked car. § 87(2)(b) was then transported to the 30<sup>th</sup> Precinct stationhouse by PO Gach and PO Jennings; this took about one minute. § 87(2)(b) continued to kick and scream while being transported. As soon as PO Gach and PO Jennings arrived at the stationhouse with § 87(2)(b) in tow, they called for an ambulance as a result of § 87(2)(b) being sprayed with pepper spray. § 87(2)(b) voluntarily walked up to the stationhouse.

The only time § 87(2)(b) spoke about an injury was when EMS arrived at the stationhouse and asked § 87(2)(b) if he had any pain. § 87(2)(b) told them about old dental work he had done. § 87(2)(b) was escorted to § 87(2)(b) by PO Gach. § 87(2)(b) did not complain about an injury during any other time. PO Gach denied seeing § 87(2)(b) being dragged on the ground throughout the incident and stated that § 87(2)(b) was elevated off of the ground for the entire time that he was lifted. § 87(2)(b)'s demeanor did not change from the time that PO Jennings, PO Carroll and PO Pizarro carried him out of the Rite-Aid, placed him into the police car, brought him to the stationhouse and called an ambulance for him. PO Gach denied that he or any other officer called § 87(2)(b) a “fucking baby” or told him that his “complaints were bullshit.”

#### **Subject Officer: PO AVERY JENNINGS**

- *PO Avery Jennings is a § 87(2)(b) year old § 87(2)(b) black Hispanic male with black hair and brown eyes.*
- *At the time of the incident, PO Jennings worked the same tour and assignment as PO Robert Gach.*

#### **Complaint and Arrest Reports**

§ 87(2)(a) 160.50

#### **Memo Book**

At 7:12 PM, on the date of the incident, PO Jennings responded to call in which a security guard was holding a shoplifter at 3539 Broadway, otherwise known as Rite-Aid. At 7:42 PM, § 87(2)(b) was arrested and taken to the 30<sup>th</sup> Precinct stationhouse. At 8:30 PM, PO Jennings input the complaint report. At 9:20 PM, the online arrest report was complete, assigning § 87(2)(b) an arrest number along with his charges of § 87(2)(a) 160.50

stolen property. At 11:18 PM, PO Jennings faxed the affidavit to an ADA and went to § 87(2)(b) to pick up PO Gach and § 87(2)(b) (enc. D7-D12).

### **CCRB Statement**

PO Avery Jennings was interviewed at the CCRB on May 11, 2012 (enc. D23-D25). § 87(2)(g)

Both § 87(2)(b) and § 87(2)(b) were right by the entrance of the Rite-Aid. PO Jennings did not seem to remember any other employees being present upon entering the store. At this time, there were no evident injuries on § 87(2)(b). When PO Jennings and PO Gach approached § 87(2)(b), PO Jennings handcuffed § 87(2)(b), stood him up and removed all the bottles of lotion from him. PO Jennings and PO Gach proceeded to take § 87(2)(b) out to the marked car. § 87(2)(b) was calm and quiet during this procedure and did not resist.

As PO Jennings, PO Gach and § 87(2)(b) headed towards the marked car, § 87(2)(b) then threw himself on the floor and refused to leave the store premises. At this point, PO Jennings and PO Gach took § 87(2)(b) off to the right side of the store, in front of the entrance. PO Jennings told § 87(2)(b) to get up, that they had to leave the store and go to the precinct stationhouse in order to sort everything out because he was under arrest. PO Jennings, PO Gach, PO Carroll and PO Pizarro, both of whom arrived in the middle of the incident, had to pick up § 87(2)(b) from the ground and take him to the police car. PO Jennings did not call for PO Carroll and PO Pizarro, who were watching the incident prior to carrying § 87(2)(b) out of the store. Before § 87(2)(b) was taken to the marked car, he was searched by PO Jennings. PO Jennings stated that he could not recall which officer carried § 87(2)(b)'s upper or lower body. § 87(2)(b) continued to kick and made physical contact with PO Carroll's and PO Pizarro's hands and legs as they were trying to place § 87(2)(b) into the marked car. § 87(2)(b) began to yell, "Take me to the hospital! Take me to the hospital!" § 87(2)(b) never stated why he wanted to go to the hospital.

PO Jennings told § 87(2)(b) that there would be an ambulance present at the precinct stationhouse. A few minutes after PO Jennings went around to the rear driver's side of the car and opened that door, PO Jennings recalled smelling pepper spray, but did not see for himself who discharged it. PO Jennings asked PO Gach why pepper spray was used. PO Gach told PO Jennings that § 87(2)(b) had bitten his hand and he refused to let go. No blood was drawn, nor was any skin broken on PO Gach's hand. PO Gach, PO Carroll and PO Pizarro did not receive any medical treatment after their contact with § 87(2)(b). After this, PO Jennings was able to completely pull § 87(2)(b) into the car. § 87(2)(b) complained of pepper spray. At this time, PO Jennings requested an ambulance for § 87(2)(b) at the 30<sup>th</sup> Precinct stationhouse. PO Jennings did not recall which marked police car § 87(2)(b) was placed into, nor does he remember which officer drove § 87(2)(b) back to the precinct stationhouse. After arriving, § 87(2)(b) was taken into the stationhouse by PO Jennings and was no longer combative. PO Jennings stated that he did not know what caused § 87(2)(b) to complain about his old injuries during the course of the incident.

After § 87(2)(b) returned to the precinct stationhouse from the hospital, he was placed into a cell and did not interact with PO Jennings. PO Jennings denied any instance where § 87(2)(b) passed out during the event. He also denies the allegation that he or any of the officers present during the arrest called § 87(2)(b) "a fucking baby" or told him that "his complaint was bullshit", that § 87(2)(b) was ever dragged on the floor or ground, picked up and thrown into the marked car at any point or that he was ever punched in the groin.

### **Officers Not Interviewed**

Although Officer Sean Carroll and Officer Alvin Pizarro were present for and participated in the

incident, § 87(2)(g) [REDACTED]  
[REDACTED]

### **Medical Records**

§ 87(2)(a) PHL § 18(6) [REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(a) PHL § 18(6) [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

### **NYPD Documents**

#### **Command Log**

On Monday, October 17, 2011 at 7:45 PM, § 87(2)(b) [REDACTED]'s arrest was logged into the 30<sup>th</sup> Precinct Command Log. He was charged with § 87(2)(a) 160.50 [REDACTED]. PO Jennings was listed as the arresting officer. At 8:30 PM, § 87(2)(b) [REDACTED] was taken to § 87(2)(b) [REDACTED] and was returned to the stationhouse at 11:35 PM. SGT. Wong was the supervising officer (enc. F7).

#### **Sprint Report and Communications CD**

The Sprint Report and associated recording of police radio communication (enc. F1-F6) indicates that Sector C and Sector D responded to the location.

#### **Roll Call**

SGT Andy Wong was listed as the patrol supervisor for Monday, October 17, 2011. PO Gach and PO Jennings were both listed to patrol sector C in vehicle 1437. PO Carroll and PO Pizarro were both listed to patrol sector DE (enc. F8-F15).

#### **Arrest for Incident and Disposition**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]  
[REDACTED]

#### **Status of Civil Proceedings**

§ 87(2)(b) [REDACTED] filed a Notice of Claim with the City of New York on § 87(2)(b) [REDACTED], claiming personal injury. No monetary amount was listed regarding redress. (enc. C1-C2).

#### **Civilian Criminal History**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

### Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b)

### Subject Officers CCRB History

- PO Avery Jennings has been a member of the service for six years and there is one substantiated CCRB allegation against him (enc. B1).
  - In CCRB case number 200903936, PO Jennings was substantiated for his refusal to provide name and shield number, and received a Command Discipline B.
- PO Robert Gach has been a member of the service for six years and there are no substantiated CCRB allegations against him (enc. B2).

### Conclusion

#### Identification of Subject Officers

PO Jennings and PO Gach acknowledged interacting with § 87(2)(b) on the date of the incident.

§ 87(2)(g)

Officer testimony and police documentation confirmed that Officer Carroll and Officer Pizzaro were also present at the location and assisted in moving § 87(2)(b) to a police vehicle.

§ 87(2)(g)

§ 87(2)(b) could not provide an adequate description of PO Jennings or any other officers, and in his testimony, he was unable to identify or describe the officers involved aside from being uniformed white males. § 87(2)(b) learned of the subject officers' identifying information from his criminal complaint paperwork, but did not know their names during the incident. During his discourtesy allegation, § 87(2)(b) could not estimate an amount, identify or describe any of the officer who he made the allegations against. § 87(2)(g)

#### Investigative Findings and Recommendations

**Allegation A—Force: At 3539 Broadway in Manhattan, PO Avery Jennings used physical force against § 87(2)(b)**

**Allegation B—Force: At 3539 Broadway in Manhattan, PO Robert Gach used physical force against § 87(2)(b)**

**Allegation C—Force: At 3539 Broadway in Manhattan, PO Sean Carroll used physical force against § 87(2)(b)**

**Allegation D—Force: At 3539 Broadway in Manhattan, PO Alvin Pizarro used physical force against § 87(2)(b)**

§ 87(2)(b) stated that he passed out for a short while, but when he came to, he found that he was being dragged towards a police vehicle by unidentified male uniformed officers, including PO Jennings. PO Jennings and PO Gach testified that § 87(2)(b) was never dragged during the incident and that the officers picked him up and carried fully from off the ground. The officers' account was corroborated by loss prevention agent § 87(2)(b) § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation A-D be unfounded.**

**Allegation E—Force: At 3539 Broadway in Manhattan, officers used physical force against**

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that after he was taken out of the Rite-Aid, officers he could not identify or describe threw him head first into the marked car. PO Jennings and PO Gach both denied that § 87(2)(b) was ever thrown into the marked vehicle. Patrol Guide Procedure 203-11 states that all members of the service at the scene of a police incident must use minimum necessary force and employ non-lethal alternatives, as appropriate (enc. A1-A2). PO Gach and PO Jennings both played a part in placing § 87(2)(b) into the marked car due to his resistance. Even though PO Jennings and PO Gach denied these throwing § 87(2)(b) into the marked car, § 87(2)(b) could not provide any other descriptive information for the unidentified white male uniformed officers he alleged threw him into the marked car. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation E** be closed as **officers unidentified**.

**Allegation F—Force: At 3539 Broadway in Manhattan, PO Robert Gach used pepper spray against**

§ 87(2)(b) It is not disputed that PO Robert Gach used pepper spray against § 87(2)(b) § 87(2)(b) stated that an unidentified male uniformed officer sprayed him three times in the face with pepper spray. As per his memo book entry and CCRB testimony, PO Gach sprayed § 87(2)(b) once in the face after § 87(2)(b) bit his left pinky knuckle. PO Jennings did smell pepper spray while he was at the rear driver's side of the marked car; PO Gach told PO Jennings that he sprayed § 87(2)(b) after § 87(2)(b) bit him. Patrol Guide Procedure 212-95(enc. A3-A6) states that pepper spray may be used when a member reasonably believes it is necessary to arrest a resisting suspect, for self-defense or defense of another from unlawful force, or to take a resisting emotionally disturbed person into custody. In many cases, pepper spray will reduce or eliminate the need for substantial physical force to affect and arrest or gain custody. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation F** be **exonerated**.

**Allegation G— Force: At 3539 Broadway in Manhattan, PO Gach used physical force against**

§ 87(2)(g)

§ 87(2)(b) § 87(2)(b) stated that after he was pepper sprayed three times in the face by PO Gach, PO Gach punched him in the groin. PO Gach denied punching § 87(2)(b) after spraying him with pepper spray. PO Gach stated that after § 87(2)(b) was pepper sprayed, he fell back into the seat and continued to kick at PO Carroll and PO Pizarro, who then were able to hold onto his legs. PO Jennings stated that he was able to pull § 87(2)(b) all the way into the marked car after he was pepper-sprayed. PO Jennings denied that he observed any officers punch § 87(2)(b) in the groin. Patrol Guide Procedure 203-11 states that all members of the service at the scene of a police incident must use the minimum necessary force to effectuate an arrest(enc. A1-A2). § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation G** be **unsubstantiated**.

**Allegation H— Force: At the 30<sup>th</sup> Precinct stationhouse, officers spoke discourteously to**

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that officers he could neither identify nor describe told him that he was a “fucking baby” and said that his “complaints were bullshit.” PO Jennings and PO Gach both denied stating these things to § 87(2)(b) Patrol Guide Procedure 203-09 states that officers should be courteous and respectful when it comes to contact with the public. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation H** be closed as **officers unidentified**.

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Team: \_\_\_\_1\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date